

Case :- WRIT - C No. - 35996 of 2018

Petitioner :- Jamshed Ali

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sunil Kumar Srivastava, Vinod Kumar Srivastava

Counsel for Respondent :- C.S.C., Awadhesh Kumar Saxena

Hon'ble B. Amit Sthalekar, J.

Hon'ble Rajiv Joshi, J.

Heard Sri Sunil Kumar Srivastava, learned counsel for petitioner, learned Standing Counsel for respondent Nos.1 to 3 and Sri A. K. Saxena, learned counsel for respondent Nos.4 and 5.

The petitioner in the writ petition is seeking quashing of the recovery citation dated 21.08.2018, whereby a sum of Rs. 6,66,803/- is sought to be recovered from him towards electricity dues.

It is stated that an order of permanent disconnection has already been passed and F.I.R. has also been lodged on 20.03.2010 against the petitioner with regard to the alleged theft of electricity which is a subject matter of dispute here. However, it is pointed out that on 10.09.2018 the respondent No. 5- Executive Engineer, Electricity Urban Distribution Division, District- Saharanpur has himself written to the Sub-Divisional Officer, Ist Electricity Urban Distribution Division Ist, District- Saharanpur that the P.D. report may be forwarded so that a decision may be taken on the complaint of the consumer i.e. the petitioner.

The petitioner also has a remedy by approaching the Executive Engineer, under the Provision of clause 6.8 of the U.P. Electricity Supply Code, 2005.

The writ petition is, therefore, disposed of with a direction that in case the petitioner files objection under clause 6.8 of U.P. Electricity Code, 2005 within a period of three weeks from today alongwith certified copy of this order before the respondent No.5- Executive Engineer, Electricity Urban Distribution Division District- Saharanpur, the same shall be considered and decided by the respondent No.5 in accordance with law within a further period of one month.

Till such decision is taken, it is provided that no coercive step shall be taken against the petitioner for recovery of the amount in pursuance of the impugned recovery citation dated 21.08.2018.

Order Date :- 30.10.2018

Sweety